REBUTTAL TO AADE RESPONSE

Protocol 214142/2026/02/03/10003
Date: February 11, 2026

FROM: Stamatina Kyprianos
AFM: 044594747
Widow of John Kyprianos (deceased June 13, 2021)
Deceased AFM: 051422558
Email: StamatinaKyprianou@gmail.com
Phone: +1-734-560-3743

TO: AADE - Independent Authority for Public Revenue
RE: FORMAL REBUTTAL - Your Protocol 214142/2026/02/03/10003 is factually deficient, legally inadequate, and its conclusion constitutes complicity in ongoing fraud

CC:
- FBI Legal Attache Athens (athens.legat@ic.fbi.gov)
- EPPO Luxembourg (Case PP.001792026EN)
- IRS Criminal Investigation (rs.ci@irs.gov)
- U.S. Senator Elissa Slotkin (Ana.Wolken@slotkin.senate.gov)
- Hellenic Police Cybercrime Unit (Case 568102673)
- ADAE Data Protection Authority (Protocol 13162026)
- AEAD National Transparency Authority (Protocols 5123/5354 2026)
- Greek Ombudsman (Protocol 656028.01.2026)

I. PRELIMINARY STATEMENT

Your Protocol 214142/2026/02/03/10003 dated February 3, 2026, in response to my complaint regarding AFM 051422558 (my deceased husband John Kyprianos), is rejected in its entirety. Your response reaches a "charitable" conclusion that minimizes, excuses, and effectively whitewashes a multi-year, cross-border criminal conspiracy involving identity theft of a deceased Hellenic Navy (Πολεμικό Ναυτικό) veteran and NATO service member, naturalized as a United States citizen on America's Bicentennial birthday, tax fraud, and systematic obstruction of justice.

Your conclusion is not merely wrong. It is dangerous. It provides cover to the perpetrators. And it now becomes evidence of AADE institutional complicity.

This rebuttal will demonstrate, with irrefutable documentary evidence, why your conclusion collapses under the weight of a single IRS form field: Checkbox 319 vs. Checkbox 320.

II. THE 319/320 FRAUD: THE EVIDENCE YOUR "CHARITABLE" CONCLUSION IGNORES

Ψηφιακή Βεβαίωση Εγγράφου

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Κωδικός εγγράφου: dAf3e-syqtUEeg-vkKR69w

A. What Checkbox 319 and 320 Mean

On the U.S. IRS Form 1040, the taxpayer must declare their residency status:

- CHECKBOX 319: The taxpayer claims to be a RESIDENT OF A FOREIGN COUNTRY (i.e., Greece)
- CHECKBOX 320: The taxpayer is a RESIDENT OF THE UNITED STATES

These are mutually exclusive. You cannot be both. The selection determines the taxpayer's entire tax treatment, including eligibility for Foreign Tax Credits under IRS Form 1116 and compliance with the U.S.-Greece Double Taxation Treaty (Article 4).

B. The Undeniable Facts About John Kyprianos

John Kyprianos was:
1. A naturalized U.S. citizen (see: John Naturalization.jpg, already submitted to AADE)
2. A Hellenic Navy (Πολεμικό Ναυτικό) veteran and NATO service member, naturalized as a United States citizen on May 17, 1976 — America's Bicentennial
3. A lifelong resident of Roseville, Michigan, USA
4. The holder of a Michigan driver's license, U.S. Social Security number, U.S. bank accounts
5. Buried in Michigan after his death on June 13, 2021
6. NEVER a tax resident of Greece under the U.S.-Greece Tax Treaty Article 4 tie-breaker rules

His permanent home was Michigan. His center of vital interests was Michigan. His habitual abode was Michigan. His nationality was American. Under EVERY criterion of Article 4(2) of the U.S.-Greece Tax Treaty, John Kyprianos was a U.S. RESIDENT. Period.

The correct box on every IRS Form 1040 from 2011-2021 should have been CHECKBOX 320 (U.S. resident).

C. The U.S. Returns Were Correct - But Someone Filed Fraudulent Greek Declarations Using KAD 319

From 1972 through 2021, John and Stamatina Kyprianos filed their U.S. federal tax returns jointly as a married couple with CHECKBOX 320 selected - declaring themselves RESIDENTS OF THE UNITED STATES. This was correct. For nearly 50 years, every return accurately reflected their status as U.S. residents.

From 2011 through 2021, John Kyprianos' U.S. federal tax returns were filed with CHECKBOX 320 selected - declaring him a RESIDENT OF THE UNITED STATES. This was also correct.

Yet during this same period, someone filed E1 income tax declarations in Greece under AFM 051422558 using KAD code 319 - declaring John Kyprianos a RESIDENT OF GREECE. John Kyprianos never authorized these filings. He never knew about them. He was living in Michigan.

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These unauthorized Greek E1 filings enabled the ENTIRE fraud scheme:

1. The fraudulent E1 declarations created ENFIA property tax obligations against AFM 051422558 in Greece
2. These ENFIA obligations generated χρεωστικά εκκαθαριστικά (debit tax clearance notes) under AADE's system
3. Someone used these Greek tax obligations as the basis to claim FOREIGN TAX CREDITS on IRS Form 1116
4. These fraudulent foreign tax credits REDUCED John's U.S. tax liability dollar-for-dollar
5. The U.S. Treasury lost revenue for 14 consecutive years based on fabricated Greek tax obligations

D. WHY ENFIA DOES NOT QUALIFY FOR THE FOREIGN TAX CREDIT - AND AADE KNOWS THIS

The IRS is explicit: only INCOME TAXES qualify for the Foreign Tax Credit under IRC Section 901. The tax must be a levy that is not payment for a specific economic benefit, and the foreign law must substantially conform to U.S. tax law.

ENFIA is a PROPERTY TAX ("Enipalos Foros Idioktisias Akiniton"). It is levied on real estate ownership, NOT on income. It is the Greek equivalent of U.S. property tax.

Property taxes DO NOT qualify for the Foreign Tax Credit. They never have. They never will.

Therefore:
- Every Form 1116 filed from 2011-2024 claiming ENFIA as a creditable foreign tax was FRAUDULENT
- Every dollar of U.S. tax reduction obtained through these false credits constitutes WIRE FRAUD (18 USC 1343) because the returns were electronically filed
- Every false return constitutes a violation of 26 USC 7206 (fraud and false statements)

III. AADE'S ROLE IN ENABLING THE 319/320 FRAUD

A. AADE Generated the Fraudulent Tax Obligations That Fed the Scheme

Without ENFIA bills issued by AADE against AFM 051422558, there would be NOTHING to claim as a foreign tax credit on the U.S. returns. AADE is not a passive bystander. AADE is the GENERATOR of the fraudulent instruments.

The chain of fraud is:

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1. AADE generates ENFIA obligations against AFM 051422558 (a person living full-time in Michigan)
2. Someone (Euthaleia Kyprianou or another unauthorized accessor) obtains or communicates these ENFIA amounts
3. The U.S. tax preparer enters these amounts on IRS Form 1116 as "foreign taxes paid to Greece"
4. The U.S. tax preparer checks Box 319 (Greek resident) instead of Box 320 (U.S. resident) to enable the credit
5. The IRS accepts the return and reduces U.S. tax liability accordingly
6. The U.S. Treasury is defrauded

AADE's role in steps 1 and 2 is undeniable. Your own records prove it.

B. AADE Continued Generating ENFIA AFTER John's Death

John Kyprianos died on June 13, 2021. AADE continued issuing ENFIA obligations against AFM 051422558 through 2025. Despite my REPEATED notifications of his death, AADE kept AFM 051422558 active.

As of today, February 11, 2026, AFM 051422558 has been active for 4.75 YEARS after death.

Your own Registry Procedures Guide states that upon recording a death, AADE should proceed to deactivate the deceased's TAXISnet passwords and terminate all relationships. You have published a guide for the settlement of tax obligations arising from loss of life. You processed 90,720 inheritance tax returns for deceased persons digitally in 2025 alone.

You have the system. You have the procedure. You chose not to apply it to John Kyprianos. That is not negligence. That is a choice.

Moreover, the very existence of a debit tax clearance note (Greek: χρεωστικό εκκαθαριστικό σημείωμα) issued against AFM 051422558 is itself forensic proof of fraud. A χρεωστικό εκκαθαριστικό can only be generated when an E1 income tax declaration has been filed and processed. John Kyprianos never filed an E1 declaration in Greece. He never authorized anyone to file on his behalf. He had no Greek-source income. He had no obligation to file under Article 3 of N.4172/2013. Therefore, EVERY χρεωστικό εκκαθαριστικό issued against this AFM is the direct product of unauthorized, fraudulent E1 filings by an unknown third party. Your own system generated the evidence of the crime. AADE's response to Protocol 214142 compounds the problem further: your ΚΕ.Β.ΕΙΣ. division classified the income under KAD code 320 (real estate income) to deny a refund, while the χρεωστικό εκκαθαριστικό itself was generated under KAD code 319 (short-term rental platform income under Article 39A N.4172/2013). Codes 319 and 320 are mutually exclusive tax categories. You cannot apply both to the same taxpayer for the same income. This internal contradiction within AADE's own records is irrefutable evidence that the underlying E1 declarations are fabricated.

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IV. WHY YOUR "CHARITABLE" CONCLUSION IS DESTROYED BY THE 319/320 EVIDENCE

Your Protocol 214142 concludes with what amounts to a dismissal or minimization. You treat this matter as an administrative irregularity. You suggest that the situation with AFM 051422558 can be explained by routine processes or misunderstandings.

This conclusion is annihilated by the following logic:

IF John Kyprianos was a U.S. resident (CHECKBOX 320) - which he was - THEN:
- He owed ZERO Greek income tax
- He was entitled to ZERO Foreign Tax Credits for Greek taxes on his U.S. returns
- Every ENFIA charge against his AFM was a property tax on a non-resident, NOT a creditable income tax
- Someone DELIBERATELY checked Box 319 instead of Box 320 to create the appearance of Greek residency
- That deliberate misrepresentation enabled 14 years of fraudulent U.S. tax filings
- AADE's ENFIA obligations were the raw material that fed this fraud

IF your conclusion suggests this was innocent or negligent, you must explain:
1. WHO provided John's Greek tax information to the U.S. tax preparer?
2. WHO instructed the U.S. tax preparer to check Box 319 (Greek resident) instead of Box 320?
3. WHY did Euthaleia Kyprianou have unauthorized access to AFM 051422558 for 4.75 years after John's death?
4. WHY was a dormant AIT.1 tax refund claim (Protocol 05134000000508766) activated on the SAME DAY (January 14, 2026) that Euthaleia's AFM access was removed?
5. WHO is the claimant on the AIT.1 refund, and why is their identity concealed?

Your "charitable" conclusion answers NONE of these questions. It does not even ask them.

V. U.S.-GREECE TAX TREATY VIOLATIONS: AADE'S OBLIGATIONS UNDER ARTICLE 26

The U.S.-Greece Double Taxation Treaty includes Article 26 (Exchange of Information), which obligates AADE to provide tax information to the IRS upon request.

On February 3, 2026, IRS Criminal Investigation filed an Article 26 request to AADE for complete records on AFM 044594747 and AFM 051422558 for the period 2011-2026.

AADE is now LEGALLY OBLIGATED under international treaty law to provide these records. Your "charitable" conclusion that minimizes the fraud is directly contradicted by the fact that the IRS considers this matter serious enough to invoke treaty mechanisms.

The IRS does not file Article 26 requests for administrative irregularities. The IRS files Article 26 requests for criminal tax fraud investigations.

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Your conclusion is incompatible with the IRS's assessment. One of you is wrong. The evidence overwhelmingly indicates it is AADE.

VI. IRS EVIDENCE SUMMARY: THE COMPLETE FORENSIC RECORD

The attached IRS-Evidence-Summary.pdf contains the complete forensic record compiled from IRS transcripts, Greek AADE portal records, and cross-referenced financial data. This evidence summary establishes the following irrefutable facts:

A. IRS Transcripts Confirm Box 320 Was Filed Every Year

IRS Account Transcripts for tax years 2011 through 2021 confirm that every Form 1040 filed for John Kyprianos (SSN on file) reflected CHECKBOX 320 - U.S. RESIDENT. Not a single IRS transcript shows Box 319 (foreign resident) was selected on the original returns filed by the U.S. tax preparer.

This means the U.S. returns were internally consistent: John was declared a U.S. resident on every Form 1040, exactly as he should have been.

B. Form 1116 Was Filed Simultaneously - Creating an Impossible Contradiction

Despite Box 320 being selected (U.S. resident), IRS transcripts also show that Form 1116 (Foreign Tax Credit) was filed for every year from 2011 through 2024, claiming credits for "taxes paid to Greece."

This is a legal impossibility under IRC Section 901:
- A taxpayer claiming Box 320 (U.S. resident) has NO obligation to pay Greek income tax
- If a U.S. resident has no Greek-source income, there is no foreign tax to credit
- ENFIA (a property tax) does not qualify as a creditable foreign tax under any circumstances
- The simultaneous filing of Box 320 + Form 1116 claiming ENFIA is prima facie evidence of fraud

C. The Dollar Amounts Match AADE's ENFIA Records

The amounts claimed as foreign tax credits on each year's Form 1116 correspond precisely to the ENFIA obligations generated by AADE against AFM 051422558. This is not coincidence. This is a paper trail.

Year-by-year, the ENFIA amounts issued by AADE were entered onto IRS Form 1116 as "creditable foreign taxes." The IRS evidence summary documents this correlation across all 14 years (2011-2024).

D. Post-Death Filings (2022-2024) Confirm Ongoing Criminal Activity

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John Kyprianos died on June 13, 2021. Yet IRS records show Form 1116 was filed for tax years 2022, 2023, and 2024 - claiming foreign tax credits for a DEAD person.

These post-death filings could only have been made by someone with access to:
1. John's Social Security number and tax information
2. The ENFIA amounts generated by AADE against AFM 051422558
3. The ability to file U.S. tax returns in John's name

This narrows the responsible parties to those with access to BOTH the Greek AADE system AND John's U.S. tax information - specifically, those who controlled AFM 051422558 after his death.

E. Cumulative Financial Impact

The IRS evidence summary calculates the total fraudulent foreign tax credits claimed over 14 years. Every dollar of these credits was a direct reduction of U.S. tax liability, constituting:
- Tax fraud under 26 USC 7201 (attempt to evade tax)
- Filing false returns under 26 USC 7206(1)
- Wire fraud under 18 USC 1343 (electronic filing)
- Identity theft under 18 USC 1028 (use of a deceased person's SSN)

This evidence has been provided to IRS Criminal Investigation and forms the basis of the Article 26 treaty request to AADE dated February 3, 2026.

VII. THE DOUBLE FRAUD: BOTH GOVERNMENTS WERE VICTIMIZED

The 319/320 checkbox fraud created a double theft:

A. Fraud Against the United States:
- False residency declaration (Box 319 instead of 320)
- Fraudulent Foreign Tax Credits on Form 1116 for non-qualifying ENFIA property taxes
- 14 years of reduced U.S. tax payments based on false claims
- Wire fraud through electronic filing (18 USC 1343)
- False tax returns (26 USC 7206)

B. Fraud Against Greece:
- AFM 051422558 maintained active for a person who was NOT a Greek tax resident
- ENFIA obligations generated for a non-resident, creating phantom tax liabilities
- Post-mortem exploitation of a deceased person's AFM for 4.75 years
- AIT.1 refund claim of potentially 900K euros filed against a dead man's account
- Identity theft of a deceased person in violation of Greek Penal Code Articles 216, 242, 259, 386
- GDPR violations (ADAE Protocol 13162026)

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Both governments are victims. Your "charitable" conclusion protects the perpetrators of a crime against BOTH nations.

VIII. FORMAL DEMANDS

I hereby demand the following, with a response deadline of February 21, 2026 (5:00 PM EET):

1. RETRACT your "charitable" conclusion in Protocol 214142/2026/02/03/10003 and issue a corrected assessment acknowledging the criminal nature of the fraud involving AFM 051422558.

2. IMMEDIATELY DEACTIVATE AFM 051422558 as required by your own Registry Procedures Guide and the law. This AFM has been active for 4.75 years after the death of its holder. Every additional day constitutes ongoing obstruction.

3. PROVIDE COMPLETE RECORDS for AFM 051422558 covering 2011-2026, including:
   a. All ENFIA obligations generated and their amounts
   b. All TAXISnet access logs showing WHO accessed this AFM, WHEN, and from WHERE
   c. All records relating to AIT.1 Protocol 05134000000508766 including the identity of the claimant
   d. The complete history of Euthaleia Kyprianou's access to AFM 051422558
   e. All internal communications regarding the death notifications I submitted

4. COMPLY with the IRS Article 26 treaty request fully and without delay.

5. REFER THIS MATTER to the Greek Eisangeleas (Public Prosecutor) for criminal investigation of:
   a. Euthaleia Kyprianou for identity theft (18 USC 1028 / Greek Penal Code Art. 216)
   b. The unknown AIT.1 claimant for attempted tax fraud
   c. Any AADE employees who facilitated or ignored the fraud
   d. the U.S. tax preparer for filing 14 years of fraudulent returns

6. EXPLAIN why AADE processed 90,720 deceased-person inheritance tax returns in 2025 but failed to process the death of John Kyprianos after REPEATED notifications from his widow.

IX. CONSEQUENCES OF NON-COMPLIANCE

If AADE fails to respond substantively by February 21, 2026, I will:

1. File a SUPPLEMENTAL FBI IC3 complaint specifically addressing AADE's complicity, attaching this rebuttal and your Protocol 214142 as evidence of institutional cover-up
2. Request EPPO Luxembourg (Case PP.001792026EN) to investigate AADE officials for obstruction

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3. Request Senator Slotkin to escalate diplomatic pressure through the U.S. State Department, specifically citing the 319/320 fraud as a violation of the U.S.-Greece Tax Treaty
4. File a complaint with the European Commission regarding Greece's failure to enforce EU financial crime regulations
5. Submit this rebuttal to IRS Criminal Investigation as evidence that AADE is not cooperating with the Article 26 treaty request
6. Publish the complete evidence index (28 items) to all investigating authorities with this rebuttal attached

X. CLOSING STATEMENT

I am an 80-year-old widow of a Hellenic Navy (Πολεμικό Ναυτικό) veteran and NATO service membern. I have been fighting this alone for nearly 5 years. I have filed 20+ protocols with Greek authorities, 2 FBI complaints, 1 EPPO case, and required the intervention of a U.S. Senator.

Your "charitable" conclusion is not charity. It is abandonment. It tells the perpetrators that Greece will not hold them accountable. It tells the widow that her dead husband's identity can be exploited with impunity.

The 319/320 checkbox evidence destroys any claim that this was accidental, innocent, or merely administrative. Someone chose Box 319 instead of Box 320. Someone chose to make a Michigan resident into a Greek resident on paper. Someone chose to turn ENFIA property tax into fraudulent Foreign Tax Credits. And someone inside or connected to AADE kept that fraud running for 4.75 years after the man was dead.

Your next response will either acknowledge these facts and take corrective action, or it will become Exhibit A in a criminal obstruction case.

The choice is yours.

Respectfully but firmly,

Stamatina Kyprianos
Widow of John Kyprianos, Hellenic Navy (Πολεμικό Ναυτικό) Veteran and NATO Service Member
AFM 044594747
Roseville, Michigan, USA
February 11, 2026

ATTACHMENTS:
1. This rebuttal
2. NUCLEAR-EVIDENCE-INDEX-27-Items-Feb9-2026.csv
3. Original AADE Protocol 214142/2026/02/03/10003 (being rebutted)

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4. U.S. Death Certificate - John Kyprianos
5. John Naturalization.jpg
6. LPRAXITHANATOU.pdf
7. Certificate SN003794.pdf
8. All prior AADE protocols referenced herein
9. IRS-Evidence-Summary.pdf

PROTOCOL REFERENCES:
- AADE: 214142/2026/02/03/10003 (THIS REBUTTAL)
- AADE: 760222026011445105 (Euthaleia removal)
- AADE: 05134000000508766 (AIT.1 refund)
- AADE: 1291922026012245105
- AADE: MY1521 ticket 4-1769906364851
- EPPO: PP.001792026EN
- FBI IC3: eaa5459ac668431abdb33a7f545c3282
- FBI IC3: 3ebed7bb80d04e73acd07a217e079fa6
- ADAE: 13162026
- AEAD: 5123/5354 2026
- Ombudsman: 656028.01.2026
- Cybercrime: 568102673
- Cadastre Ministerial: 22417061 / 22417051
- Senator Slotkin: State Department inquiry Feb 2, 2026
- IRS CI: Article 26 request Feb 3, 2026

Both AFMs have been compromised, and your response fails to confront this central fact. Instead of treating this matter as a coordinated identity-theft and tax-fraud scheme built on forged E1 filings, ENFIA-based χρεωστικά, and the misuse of IRS Form 1116, AADE issues a brief, generic denial that reduces my detailed complaint to a mere account-balance inquiry. You assert that “no refund has ever appeared from tax returns in my name or my deceased husband’s name” and that “no tax refund has been made to any bank account,” relying solely on the 2023 income tax return—which you characterize as χρεωστικό—to dismiss a multi-year, cross-border fraud that spans 2011–2026. This narrow focus on a single year ignores my explicit request for a full historical review of all tax positions and refunds, the extensive evidentiary attachments already supplied (including John Naturalization.jpg, Death Certificate.png, and Certificate SN003794.pdf), and the specific allegations of unauthorized E1 declarations, ENFIA assessments, and foreign tax credit manipulation via IRS Form 1116 using fabricated “Greek taxes” generated by AADE’s own systems. By refusing to acknowledge the compromise of both AFMs, the forged Greek E1 declarations, and the continued issuance of ENFIA and χρεωστικά against AFM 051422558 for years after my husband’s death, AADE’s response does not simply overlook the evidence; it operates as an institutional endorsement of manipulated records, diverted refunds, and the ongoing 319/320 fraud that has harmed both the Hellenic Republic and the United States Treasury.

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Υπογραφή:
STAMATINA KYPRIANOS
Πατρώνυμο: ΚΩΝΣΤΑΝΤΙΝΟΣ
ΑΦΜ: 044594747
Ημ. Υπογραφής: 12/02/2026 07:40:04

Κωδικός εγγράφου: dAf3e-syqtUEeg-vkKR69w